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IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re United States Patent Application of:	)	Docket No.:	4449-103
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Applicants:	)	Conf. No.:	1510
Saxena, Manish	)		
	)		
Application No.:	)	Art Unit:	1655
12/519,137	)		
Date Filed:	)	Examiner:	Clark, Amy Lynn
November 28, 2007	)		
Title:	)	Customer No.:	
HERBAL FORMULATION	)		
FOR WOUND HEALING	)		
	)		
	)		
	)		

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/david bradin/

**RESPONSE TO OFFICE COMMUNICATION
IN U.S. PATENT APPLICATION NO. 12/519,137**

Commissioner for Patents
P.O. Box 1450
Alexandria, Virginia 22313-1450

Sir,

The following amendments are being submitted in response to the April 10, 2012 Office Action in connection with the above-identified U.S. Patent Application, finally rejecting the claims. These amendments are being submitted within two months from the mailing of the April 10, 2012 Office Action. As June 10, 2012 was a Sunday, this Response is timely filed within two months of receipt of an Office Action finally rejecting the claims.

Amendments to the claims are presented in Section I. Remarks are presented in Section II.

Section I. Amendment to the Claims:

Please amend Claims 7, and cancel Claims 17, as set forth in the following listing of the claims.

Claims Listing

1-6. (Cancelled).

7. (Currently Amended) A topical wound healing formulation useful for treating infections and chronic, non-healing wounds comprising:

i) ~~an effective amount~~ 4 to 7 % by weight of an aqueous extract of bark of *Azadirachta indica*;

ii) 0.5 to 4% by weight ~~an effective amount~~ of an extract of the following herbs:

a) root of *Berberis aristata* ~~or~~ *Berberis vulgaris*,

b) root of *Curcuma longa*,

~~be~~) stem of *Glycyrrhiza glabra*,

~~cd~~) stem, leaves or flowers of *Jasminum officinale*,

~~de~~) rhizomes of *Picrorhiza kurroa*,

~~ef~~) seeds or leaves of *Pongamia pinnata*,

~~fg~~) stem of *Rubia cordifolia*,

~~gh~~) rhizomes of *Saussurea lappa*,

~~hi~~) fruits of *Terminalia chebula*,

j) fruits or leaves of *Tricosanthes dioica*,

~~jk~~) fruits of *Capsicum*, ~~and~~

~~jl~~) flowers of *Stellata willd*; ~~and~~

iii) 6-9 % by weight of an extract of *Curcuma longa*;

iv) 6-9 % by weight of an extract of fruits or leaves of *Tricosanthes dioica*; and

~~ivii~~) a mixture of two or more oils, said mixture comprising one or more adjuncts selected

from the group consisting of thickening agents, preservatives, coloring agents, decolorizing agents,

fragrances, opacifiers, vitamins and combinations thereof, wherein the components are present in an

amount sufficient to treat wounds selected from the group consisting of diabetic foot ulcer, dry and wet

gangrene, venous ulcer, varicose veins, war wounds, burn wounds and post-operative wounds.

8. (Previously presented) The formulation according to claim 7, wherein-said extract of herbs is an oil or alcohol extract.

9. (Cancelled)

10. (Currently Amended) The formulation according to claim 7, wherein said two or more oils are selected from the group consisting of castor oil, mustard oil, coconut oil, black sesame oil and mixtures thereof.

11. (Currently amended) The formulation according to claim 7, wherein said two or more oils are present in equal ratios.

12. (Previously Presented) The formulation according to claim 7, wherein said preservative comprises copper sulphate.

13. (Previously Presented) The formulation according to claim 7, wherein said thickening agent comprises bee wax.

14. (Previously Presented) The formulation according to claim 7, wherein said decolorizing agents comprise activated charcoal, Fuller's earth, or combinations thereof.

15. (Previously Presented) The formulation according to claim 7, wherein said adjuncts comprise Calcium D-Saccharate.

16. (Previously Presented) The formulation according to claim 7, wherein said opacifiers comprise Serolite, Bentonite, Magnesium oxide, or combinations thereof.

17. (Cancelled)

18. (Previously presented) The formulation according to claim 7, wherein said formulation comprises:

0.25 % by weight of said preservatives;

1 % to 7% by weight of said thickening agent.

19. (Previously presented) The formulation according to claim 7, wherein said formulation is used in preventing amputations.

20. (Withdrawn) A process for preparing the topical wound healing formulation of claim 7, comprising the steps of:

preparing an aqueous extract by taking water and dry bark of *Azadirachta indica* in a ratio of 16 parts water to 1 part of bark, boiling the same to reduce the water to 1/4th the original concentration and filtering the same;

preparing oil mixture by mixing castor oil, mustard oil, coconut oil and black sesame oil in equal ratios to each other;

adding to the oil mixture appropriate quantities of dry powdered parts or alcohol extracts of one or more of the herbs *Berberis aristata*, *Curcuma longa*, *Glycyrrhiza glabra*, *Jasminum officinale*, *Picrorhiza kurrooa*, *Pongamia pinnata*, *Rubia cordifolia*, *Saussurea lappa*, *Terminalia chebula*, *Trichosanthes dioica*, *Capsicum*, *Stellata wild*, *Ichnicarpus frutescens* and *Sumplocos racemosa*;

adding the aqueous extract of *Azadirachta indica* to the oil-herb mixture in a ratio of 4:1 to form an oil-water mixture;

boiling the oil-water mixture until the water evaporates completely; and

optionally, adding one or adjunct components selected from the group consisting of thickeners, preservatives deodorizing agents, coloring agents, fragrances, opacifiers and vitamins.

21. (Withdrawn) A method of topically healing wounds, comprising applying an effective amount of the formulation of Claim 7 to a wound in need of healing.

22. (Withdrawn) The method of Claim 21, wherein topical application of the formulation prevents amputation.

23. (Withdrawn) The method of Claim 21, wherein the wound is selected from the group consisting of diabetic wound, diabetic foot ulcers, dry gangrene, wet gangrene, venous ulcers, varicose veins, war wounds, burns, and post-operative wounds.